

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Frank Montgoris	Team: Squad #07	CCRB Case #: 201608431	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 09/30/2016 8:20 PM	Location of Incident: § 87(2)(b) [REDACTED]	18 Mo. SOL 3/30/2018	Precinct: 10
Date/Time CV Reported Tue, 10/04/2016 1:23 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 10/04/2016 1:23 PM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Ian Wallace	21563	955648	MTS PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Brian Brody	02168	918782	MTS PCT
2. POF Mary Soren	15000	952085	MTS PCT
3. POF Lauren Falcone	21815	959623	MTS PCT
4. POM Joseph Soldano	03436	961311	MTS PCT
5. POM Inmer Mata	11543	951974	MTS PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Ian Wallace	Force: Police Officer Ian Wallace pointed his gun at § 87(2)(b) [REDACTED]	A . Exonerated
B . POM Ian Wallace	Abuse: Police Officer Ian Wallace stopped § 87(2)(b) [REDACTED]	B . Exonerated
C . POM Ian Wallace	Abuse: Police Officer Ian Wallace frisked § 87(2)(b) [REDACTED]	C . Exonerated
D . POM Ian Wallace	Abuse: Police Officer Ian Wallace searched § 87(2)(b) [REDACTED]	D . Exonerated
E . POM Ian Wallace	Abuse: Police Officer Ian Wallace searched § 87(2)(b) [REDACTED]s bag.	E . Exonerated
F . POM Ian Wallace	Discourtesy: Police Officer Ian Wallace spoke discourteously to § 87(2)(b) [REDACTED]	F . Unsubstantiated

Case Summary

On September 30, 2016, at approximately 8:20 p.m., § 87(2)(b) was walking westbound on § 87(2)(b), between § 87(2)(b) and § 87(2)(b), in Manhattan. A male individual, known to the investigation only as § 87(2)(b), approached PO Ian Wallace, from the Midtown South Precinct, and pointed § 87(2)(b) out on § 87(2)(b) and told PO Wallace that § 87(2)(b) had a knife. PO Wallace drove up next to § 87(2)(b) exited his RMP, and pointed his gun at § 87(2)(b) telling him to get on the ground (**Allegation A**). § 87(2)(b) complied, and was handcuffed (**Allegation B**). PO Wallace subsequently frisked and searched § 87(2)(b) and his bag in search of a knife (**Allegations C, D, and E**). § 87(2)(b) told PO Wallace that he was a lawyer, and that he did not have the right to stop him. In response, PO Wallace allegedly told § 87(2)(b) “You’re pretty stupid for a lawyer” (**Allegation F**). A knife was never found on § 87(2)(b) and he was eventually released from his handcuffs. No arrests or summonses resulted from this incident.

Mediation, Civil, and Criminal Histories

This case was eligible for mediation, but § 87(2)(b) refused to mediate. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

As of December 15, 2016, § 87(2)(b) has not filed a Notice of Claim against the City of New York (Board Review 02).

Civilian and Subject Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (Board Review 03).
- PO Wallace has been a member of the NYPD for three years. PO Wallace has been the subject of two prior allegations stemming from two cases. There have been no substantiated allegations against PO Wallace, § 87(2)(g)

Findings and Recommendations

Allegation A – Force: Police Officer Ian Wallace pointed his gun at § 87(2)(b)

Allegation B – Abuse of Authority: Police Officer Ian Wallace stopped § 87(2)(b)

Allegation C – Abuse of Authority: Police Officer Ian Wallace frisked § 87(2)(b)

Allegation D – Abuse of Authority: Police Officer Ian Wallace searched § 87(2)(b)

It is undisputed that PO Wallace pointed his gun at § 87(2)(b) and subsequently stopped him, frisked him, and searched the two pockets of his sweatpants. § 87(2)(g)

§ 87(2)(b) alleged that he was walking home from the gym after getting off the 34A bus at the intersection of § 87(2)(b) and § 87(2)(b). He was walking along the sidewalk of § 87(2)(b) wearing a burgundy-colored long-sleeved shirt, as well as gray cotton pants, and carrying a blue drawstring bag. § 87(2)(b) noticed PO Wallace exit his police vehicle approximately 25 feet away. PO Wallace immediately drew his gun and pointed it at § 87(2)(b) telling him, “Get on the ground!” § 87(2)(b) immediately complied, and went to the ground face first. PO Wallace handcuffed § 87(2)(b) and asked him where the weapon was. § 87(2)(b) responded that he did not have a weapon, at which point PO Wallace patted § 87(2)(b)'s shirt and pants pockets. He then entered both pockets of his pants, removing § 87(2)(b)'s wallet from one of his pockets (Board Review 04).

§ 87(2)(b) who was also the ani-ali of the 911 call associated with this incident, was contacted via phone. § 87(2)(b) alleged that he called 911 because he observed a male individual state to a security guard inside of § 87(2)(b), “I’m gonna stab you motherfucker.” § 87(2)(b) had approached PO Wallace outside of the Midtown South Precinct and told him that he saw an individual with a knife threaten a security guard inside of § 87(2)(b). PO Wallace asked § 87(2)(b) what the individual looked like, and § 87(2)(b) pointed to § 87(2)(b). PO Wallace asked § 87(2)(b) if he was pointing to the individual with a red shirt, and § 87(2)(b) said yes. PO Wallace then went and stopped § 87(2)(b) but § 87(2)(b) did not stay and witness the incident (Board Review 13).

PO Wallace stated that he, PO Joseph Soldano, and PO Lauren Falcone were looking for a parking spot outside the Midtown South Precinct when a male individual, known to the investigation only as § 87(2)(b), approached his driver’s side window and told PO Wallace, “That’s the guy with the knife. That’s the guy with the knife.” While saying this, § 87(2)(b) had a cell phone in his left hand and was pointing down the block. PO Wallace then heard over the radio that there was a dispute with a knife at § 87(2)(b) and § 87(2)(b) and that the suspect had fled westbound towards § 87(2)(b). PO Wallace asked § 87(2)(b) where the suspect was, and § 87(2)(b) pointed to § 87(2)(b) with his right hand, who was crossing over § 87(2)(b) approximately 75 feet away. PO Wallace asked § 87(2)(b) for a description of § 87(2)(b) and § 87(2)(b) described him as a black male wearing gray sweatpants and carrying a drawstring backpack. PO Wallace could not recall the type of shirt that § 87(2)(b) had told him.

PO Wallace, PO Soldano, and PO Falcone then drove down the block towards § 87(2)(b) and pulled up alongside of him. Upon getting out of the car, PO Wallace, who was approximately 10 to 15 feet away from § 87(2)(b), observed that § 87(2)(b) fit § 87(2)(b) description. He then pulled out his gun and pointed it at § 87(2)(b) because he was not certain whether § 87(2)(b) had a weapon, and he did not want to risk the safety of PO Soldano and PO Falcone. PO Wallace handcuffed § 87(2)(b) stood him up, and patted § 87(2)(b) s two front pants pockets, as well as his waistband. He then entered both of § 87(2)(b) s pants pockets and turned them inside out. Nothing was removed, and PO Wallace ultimately did not recover anything from § 87(2)(b) (Board Review 05).

PO Soldano testified that § 87(2)(b) approached PO Wallace, pointed at § 87(2)(b) who was walking down the block at a fast pace approximately 100 feet away and was wearing a red jacket, and told PO Wallace that he had a knife and threatened him at his business. PO Wallace then asked § 87(2)(b) if he was pointing to the person in the red jacket, and § 87(2)(b) said yes. § 87(2)(b) was on the phone while speaking to the officers, and PO Soldano believed that he had called 911 regarding § 87(2)(b) because the job went over as a radio run while the officers were in the midst of affecting the stop. Upon approach of § 87(2)(b) PO Wallace pointed his gun at § 87(2)(b) told him to get on the ground, and subsequently handcuffed him. PO Wallace patted § 87(2)(b) s waist area and the front pockets on his jacket, but PO Soldano did not see PO Wallace enter any of § 87(2)(b) s pockets (Board Review 06).

The 911 call placed by § 87(2)(b) at 8:31 p.m. noted that § 87(2)(b) told the 911 operator that an argument had taken place which resulted in the suspect pulling out a knife. § 87(2)(b) then tells the operator to hold on, and then comes back a few seconds later and says that he was with the police now at the police station. At 1:43 in the audio recording, § 87(2)(b) is heard saying, “That one.” A male voice is then heard in the background saying, “Where did he go?” § 87(2)(b) responds, “That one. That one.” A male voice is heard in the background saying, “With the black and (inaudible)?” § 87(2)(b) responds, “Yes. Yes, yes.” A male voice then states, “On the

(inaudible)?” § 87(2)(b) responds, “Yes.” Silence is heard, and § 87(2)(b) then states at 1:52 in the recording, “I did.” At 1:58 in the recording, § 87(2)(b) continues talking to the operator (Board Reviews 07 and 16).

The police radio communications audio indicated at 8:32 p.m., the dispatcher states that there is a 10-52 (dispute) for a male with a knife at § 87(2)(b) and § 87(2)(b) (Board Reviews 08 and 16).

Information from an informant can establish probable cause if the informant meets the two prongs of the *Aguilar-Spinelli* Test: they are proven to have a basis of knowledge of information, and that the information is reliable. *People v. Johnson*, 66 N.Y.S.2d 398 (1985) (Board Review 09). A description from a citizen informant in a face to face encounter, while not as reliable as a tip by an identified informant, is more reliable than an anonymous tip because the officer has the opportunity to assess the informant’s appearance and demeanor. *People v. Harris*, 573 N.Y.S.2d 280 (1991). Such reliability does not decrease when the officer cannot ascertain the informant’s identity because of the haste to leave the scene to apprehend the perpetrator. *Id.* (Board Review 10). An officer may stop an individual when he reasonably suspects that a person has committed, is committing, or is about to commit a crime. *People v. DeBour*, 40 N.Y.2d 210; 352 N.E. 2nd 562 (1976). An officer may frisk an individual when he reasonably suspects that he is in danger of physical injury by virtue of the detainee being armed. An officer must have probable cause to perform a search of a person. *Id.* (Board Review 11). The policy of the Police Department is that an officer can draw his firearm and point it at another person so long as he has a reasonable fear for his own or another’s personal safety. *Police Department v. Gliner*, OATH Index, #955/00 (Board Review 12).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **allegations B, C, and D** be closed as **exonerated**.

§ 87(2)(g)

As a result, it is recommended that **allegation A** be closed as **exonerated**.

Allegation E – Abuse of Authority: Police Officer Ian Wallace searched § 87(2)(b)'s bag.

It is undisputed that PO Wallace searched § 87(2)(b)'s bag. § 87(2)(b) alleged that, after PO Wallace conducted a frisk and a search of his person, he told PO Wallace that he had “searched everything.” PO Wallace then clarified that he didn’t search his drawstring bag, and § 87(2)(b) told PO Wallace that he had permission to search his bag. PO Wallace subsequently searched the bag, but did not find a knife (Board Review 04).

PO Wallace testified that, after frisking and searching § 87(2)(b) he asked § 87(2)(b) once for permission to search his drawstring bag. § 87(2)(b) then provided verbal consent for PO Wallace to search the bag, and PO Wallace opened the bag, took § 87(2)(b)'s cell phone, wallet, and spare clothes out of the bag, looked inside, and then placed the contents back in the bag (Board Review 05).

A police officer can seek consent to search, but consent must be voluntarily given. NYPD Patrol Guide, Section 212-11 (Board Review 14).

§ 87(2)(g)

Therefore, it is recommended that **allegation E** be closed as **exonerated**.

Allegation F – Discourtesy: Police Officer Ian Wallace spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that, after PO Wallace searched his bag, he told PO Wallace that he was a lawyer and that he knew his rights, and that PO Wallace did not have any reason to further keep him detained. PO Wallace then responded, “You’re pretty stupid for a lawyer.” § 87(2)(b) believed that PO Inner Mata was the only other officer who would have heard PO Wallace’s comment (Board Review 04).

PO Wallace acknowledged that § 87(2)(b) identified himself as a lawyer, and that he claimed the officers did not have probable cause to conduct the stop. PO Wallace testified that he attempted to explain to § 87(2)(b) that someone had pointed him out, and that the stop was not based on an unfounded call. PO Wallace denied telling § 87(2)(b) “You’re pretty stupid for a lawyer,” and never said any other similar statements towards § 87(2)(b) (Board Review 05).

PO Soldano testified that § 87(2)(b) was verbally irate and continued yelling at PO Wallace in regards to him pointing a gun at him. § 87(2)(b) also yelled out to the officers

in general that he was a lawyer, but did not say anything else regarding his profession. PO Soldano did not remember PO Wallace getting into a conversation with § 87(2)(b) about him being a lawyer, but stated that PO Wallace never told § 87(2)(b) “You’re pretty stupid for a lawyer” (Board Review 06).

PO Mata, who walked from the stationhouse to the incident location as backup, stated that § 87(2)(b) never mentioned that he was a lawyer while he was at the location, and only mentioned that he was walking home to his apartment which was in the area. PO Mata did not hear PO Wallace tell § 87(2)(b) “You’re pretty stupid for a lawyer,” and would have remembered if a conversation regarding the law or § 87(2)(b) being a lawyer ever took place (Board Review 15).

§ 87(2)(g)

Therefore, it is recommended that **allegation F** be closed as **unsubstantiated**.

Squad: 7

Investigator:	_____	<u>Frank Montgoris</u>	_____
	Signature	Print	Date
Squad Leader:	_____	<u>Diana P. Townsend</u>	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date